IN THE NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH (COURT – II)
(Through Hybrid Mode)

Item No. 3

CP (CAA) No. 42/Chd/Hry/2023
(2nd Motion)

IN THE MATTER OF:

Chamundeshwari Builders Pvt. Ltd ... Transferor Company

And

DLF Garden City Indore Pvt Ltd ... Transferee Company

Under Section: 230-232, CA, 2013

Order delivered on 27.09.2024

CORAM:
SHRI. UMESH KUMAR SHUKLA, HON'BLE MEMBER (T)
SHRI. HARNAM SINGH THAKUR, HON'BLE MEMBER (J)

PRESENT:

For the Petitioner Companies	**:**	Dr. U.K. Chaudhary, Senior Advocate with Mr. Pulkit Goyal, Ms. Manisha Chaudhary, Mr. Shravan Chandrashekhar and Ms. Manisha Sharma, Advocates
For the Income Tax Department	**:**	Mr. Yogesh Putney, Senior Standing Counsel
For the RD	**:**	Mr. Vineet Khatri, Company Prosecutor
For the Official Liquidator	**:**	Mr. Edward Augustine George, Advocate

ORDER

The compliance affidavit on behalf of the petitioner companies has been filed vide diary No.03428/10 dated 09.08.2024, in which, it is mentioned that there is no objection from RERA, Punjab. The same is taken on record. It is

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also mentioned that RERA, Gurgaon, has still not filed a report, despite repeated service of notice. Today, there is no representation on behalf of the RERA, Gurgaon. In these circumstances, learned counsel for the petitioner companies is directed to file undertaking that the transferee company undertakes all the liabilities and compliances, if any, required by RERA, Gurgaon. The reply to the report of Official Liquidator has been filed vide diary No.03428/9 dated 06.08.2024. The reply to the report of Regional Director has been filed vide diary No.03428/8 dated 06.08.2024. Both are taken on record. It is stated by Mr. Vineet Khatri, learned Company Prosecutor, for the RD, that he has gone through the response filed by the petitioner companies and he has no objection to the approval of the scheme. Similarly, it is stated by Mr. Yogesh Putney, learned Senior Standing Counsel for the Income Tax Department, that he has no objection to the scheme and at the same time, it is stated by Mr. Edward Augustine George, learned counsel for the Official Liquidator that after gone through the response, he has no objection to the scheme.

Heard. Order Reserved.

Sd/- Sd/-

(UMESH KUMAR SHUKLA)
HON'BLE MEMBER (T)

(HARNAM SINGH THAKUR)
HON'BLE MEMBER (J)

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